



CHAPTER xcvi.

An Act to extend the time limited for the construction of certain tramways and street works to confer further powers on the Rhondda Urban District Council with respect to their water undertaking and for other purposes.

A.D. 1926.

[4th August 1926.]

WHEREAS the Rhondda Urban District in the county of Glamorgan (hereinafter referred to as "the district") is an urban district within the meaning of the Local Government Act 1894 and is under the management and control for local and sanitary purposes of the Rhondda Urban District Council (hereinafter referred to as "the Council") :

And whereas the several local Acts and Provisional Orders confirmed by Parliament mentioned in the First Schedule to this Act (save so far as any of them is amended by any later Act or Order among the same) are in force within the district and each of those Acts and Orders is hereinafter referred to separately as an Act or Order of the year in which the same was passed or made :

And whereas the Council are the owners of a system of tramways within the district the construction of which was authorised by the Act of 1902 and the Act of 1910 :

And whereas the Council have granted leases of the said tramways to the Rhondda Tramways Company Limited (hereinafter referred to as "the tramway

A.D. 1926. company") and the tramway company are working the same :

And whereas by the Act of 1915 the construction of additional tramways in the district was authorised and it was intended in pursuance of the provisions of the agreement between the Council and the tramway company set forth in the First Schedule to that Act that the tramway company should raise the necessary capital for and should construct such additional tramways and that the Council should grant to the tramway company a lease of the same upon the terms mentioned in the said agreement :

And whereas by reason of the war the tramway company were unable to raise such capital and by the Act of 1920 the Council were authorised to borrow the further money then necessary for the construction and equipment of the additional tramways the terms and conditions of the said agreement were varied in the manner provided by that Act and the period limited for the construction of the additional tramways was extended until the twenty-ninth day of July one thousand nine hundred and twenty-seven :

And whereas owing to the high cost of labour and material the additional tramways have not yet been constructed and it is expedient that the period limited by the Act of 1915 for the construction of the additional tramways be extended and the powers granted to the Council by that Act of acquiring land for the purpose of the new road and street works thereby authorised be revived and extended :

And whereas the Council are the local and sanitary authority and the road authority for the district and are the owners of the water undertaking by which the district is supplied with water and it is expedient that further powers be conferred upon the Council with respect to their water undertaking and with respect to sanitary matters as in this Act provided :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas plans of the lands required for the new road and street works authorised by the Act of 1915 the powers to acquire which lands are by this Act revived

and extended and a book of reference to the plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of those lands have been deposited with the clerk of the peace for the county of Glamorgan and are in this Act referred to as the deposited plans and book of reference : A.D. 1926.

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Ministry of Health has been obtained :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1.—(1) This Act may be cited as the Rhondda Short title.
Urban District Council Act 1926.

(2) This Act and the Acts and Orders specified in the First Schedule to this Act may be cited together as the Rhondda Urban District Council Acts 1868 to 1926.

2. This Act is divided into Parts as follows :—

Part I. Preliminary.

Part II. Tramways.

Part III. Lands.

Part IV. Water.

Part V. Financial.

Part VI. Miscellaneous.

Division of
Act into
Parts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :— Incorporation of Acts.

The Lands Clauses Acts except Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands).

A.D. 1926.
 —
 Interpretation.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires :—

“The Council” means the Rhondda Urban District Council;

“The district” means the Rhondda Urban District;

“The district fund” and “the general district rate” mean respectively the district fund and general district rate of the district;

“The Act of 1896” means the Ystradyfodwg Urban District Council (Gas and Water) Act 1896;

“The Act of 1899” means the Rhondda Urban District Council Act 1899;

“The Act of 1902” means the Rhondda Urban District Council (Tramways &c.) Act 1902;

“The Act of 1905” means the Rhondda Urban District Council Act 1905;

“The Act of 1915” means the Rhondda Urban District Council (Tramways Extensions &c.) Act 1915;

“The Act of 1920” means the Rhondda Urban District Council Act 1920;

“The Order of 1911” means the Rhondda Electric Lighting Order 1911;

“The clerk” and “the treasurer” mean respectively the clerk and the treasurer of the Council and include respectively any persons duly authorised to discharge temporarily the duties of those offices;

“Trading undertakings” means the tramway undertaking the water undertaking the gas undertaking and the electricity undertaking of the Council as for the time being authorised;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or

continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed; A.D. 1926.

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertaking or other property for the time being of the Council and the rates or contributions leviable by or on the order or precept of the Council.

PART II.

TRAMWAYS.

5. The period limited by section 11 of the Act of 1915 as extended by the Act of 1920 for the completion of the tramways authorised by the Act of 1915 is hereby extended until the expiration of five years from the twenty-ninth day of July one thousand nine hundred and twenty-seven. Extending period for completion of tramways.

6. In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under this Act or any existing Act or Order of the Council the provisions of Part I. of the Inquiries by Minister of Transport

A.D. 1926. Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or one of the secretaries of the Board."

PART III.

LANDS.

Revival and extension of power to acquire lands.

7. The powers conferred upon the Council by section 19 of the Act of 1915 for the compulsory purchase of lands are hereby revived and extended until the thirty-first day of October one thousand nine hundred and twenty-nine and subject to the provisions of the Act of 1915 and for the purposes of the new road and street works by that Act authorised the Council may before the thirty-first day of October one thousand nine hundred and twenty-nine enter upon take appropriate and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference Provided that notwithstanding anything contained in section 56 (Power to borrow) of the Act of 1915 or subsection (1) of section 18 (Power to borrow) of the Act of 1920 the Council shall not after the passing of this Act without the sanction of the Minister of Health borrow any further moneys for the purpose (d) mentioned in the said section 56 of the former Act or for the purpose (e) mentioned in the said section 18 of the latter Act.

PART IV.

WATER.

Increase of rates and charges.

8. As from the quarter-day which shall happen next after the passing of this Act section 65 of the Act of 1902 and section 7 of the Act of 1905 shall be modified so that the Council may make—

(a) for water supplied for other than domestic purposes and by measure; and

(b) for water supplied for domestic purposes;

charges not more than seventy-five per centum in excess of the charges for those purposes by those sections authorised.

9. The provisions of section 35 of the Waterworks
Clauses Act 1847 shall in their application to the Council
be read and construed as if the one-tenth part of the
expense of providing and laying down pipes mentioned
in that section were one-sixth part of such expense and as
if the period of three years mentioned in that section
were five years.

A.D. 1926.

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Amendment
of section 35
of Water-
works
Clauses
Act 1847.

10.—(1) If in the opinion of the Council any waste
of water or injury or risk of injury to person or property
is caused or likely to be caused by reason of any injury
to or defect in any communication pipe which the Council
are not under obligation to maintain it shall be lawful
for the Council subject as hereinafter provided to enter
the premises on which such communication pipe is
situate and execute such repairs as they may think
necessary or expedient in the circumstances of the case
without being requested so to do.

Power to
Council to
repair com-
munication
pipes.

(2) If any injury to or defect in the communication
pipe shall have been found the expense incurred by the
Council for the purpose of ascertaining the cause of
injury or defect and executing the repairs (including the
expense of breaking up filling in reinstating and making
good any road pavement or soil for those purposes) shall
be recoverable by the Council from the owner of the
premises supplied or in cases where the communication
pipe is repairable by the occupier of such premises the
occupier in like manner as the water rates in respect of
the premises are recoverable.

(3) Except in cases of emergency the Council shall
not under the powers of this section enter into any
private premises unless they shall have given to the
owner and occupier of such premises not less than twenty-
four hours' previous notice of their intention so to enter.

(4) Section 24 (Power to Council to repair com-
munication pipe) of the Act of 1915 is hereby repealed.

11. Notwithstanding anything contained in any Act
relating to the Council the Council shall have the exclusive
right of executing any works on any of the water mains
of the Council for connecting any communication or
service pipes therewith and the Council shall on the
request of any owner or occupier of any premises who is
entitled to be supplied with water by the Council execute
on any such main subject to the provisions so far as

Council to
connect
communi-
cation pipes
with mains.

A.D. 1926. applicable of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes any work and supply all fittings and materials which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Council in so doing shall be repaid by the owner or occupier so requesting and shall be recoverable as a civil debt.

Penalty for
closing
valves &c.

12. Every person who shall wilfully (without the consent of the Council) or negligently close or shut off any valve cock or other work or apparatus belonging to the Council whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Council) be liable to a penalty not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe.

Penalty for
opening
valves &c.

13. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Council who shall without the authority of the Council turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Council and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly.

PART V.

FINANCIAL.

Power to
borrow.

14.—(1) The Council may independently of any other borrowing power borrow at interest for paying the costs charges and expenses of this Act the sum requisite and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the district fund and general district rate.

(2) Any sums so borrowed shall be repaid within a period of five years from the passing of this Act and

the provisions of Part V. of the Act of 1920 shall with the necessary modifications apply thereto. A.D. 1926.

(3) The provisions of subsection (2) of this section shall not limit the powers conferred upon the Council by the next succeeding section of this Act.

15.—(1) Where the Council have from time to time any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

Power to
use one
form of
mortgage
for all
purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Council and may be made in the form contained in the Second Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the dates of the respective mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Council at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) There shall be kept at the office of the clerk a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed.

Every such register shall be open to inspection by any mortgagee or other person entitled to any mortgage granted under this section during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

A.D. 1926.
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(6) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate rights and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule to this Act or to the like effect and shall not contain any recital trust power or proviso whatsoever.

(7) There shall be kept at the office of the Council a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(8) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(9) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Evidence of
transfer or
transmission
of securities.

16. It shall not be obligatory on the Council to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the clerk of the security or the certificate thereof

for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited. A.D. 1926.

17. Where more persons than one are registered as joint holders of any mortgage of the Council any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Council or the treasurer by any other of them. Interest on mortgages held jointly.

18. If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Council. Receipt in case of persons not sui juris.

19. All moneys received by the Council on account of the revenue of any of the trading undertakings (including the interest on any reserve fund authorised in connection therewith) in any year ending on a thirty-first day of March subsequent to the thirty-first day of March one thousand nine hundred and twenty-seven shall be carried to and shall form part of the revenue for that year of the district fund and all payments and expenses made and incurred in respect of each of those undertakings in the same year shall be paid out of the district fund. Revenue and expenses of trading undertakings.

20.—(1) The Council may if they think fit maintain a reserve fund in respect of each trading undertaking by setting aside such an amount as they may from time to time think reasonable and investing the same in statutory securities until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding (except in the case of the tramway undertaking) a sum equal in the case of the gas undertaking to one-fifth and in the case of the water undertaking and the electricity undertaking respectively to one-tenth of the aggregate capital for the time being expended by the Council upon the undertaking. Reserve funds.

(2) All interest received in any year from the investments of any reserve fund so formed shall be

A.D. 1926. — carried to and shall form part of the revenue for that year of the district fund but the reserve fund shall in that year be increased by a sum equal to the amount of such interest if and so far as the amount of the fund for the time being is less than the prescribed maximum.

(3) The reserve fund shall be applicable for the payment to the district fund in any year in which as shown by the accounts to be kept in pursuance of the provisions of the section of this Act of which the marginal note is "Separate accounts in respect of trading undertakings" the payments and expenses made and incurred in respect of the undertaking shall exceed the money received in respect of the same undertaking of a sum not exceeding the amount of such excess or for meeting any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the works forming part thereof or otherwise for the benefit of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

Separate
accounts in
respect of
trading
under-
takings.

21.—(1) As from the thirty-first day of March one thousand nine hundred and twenty-seven the Council shall keep their accounts so as to distinguish capital from revenue and as regards the revenue account to show under a separate heading or division in respect of each of the trading undertakings on the one side all receipts (including the interest on any reserve fund authorised in connection therewith) and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

- (a) The working and establishment expenses and costs of maintenance of the undertaking;
- (b) The interest on moneys borrowed by the Council for the purposes of or connected with the undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;

- (d) The amount (if any) paid to a reserve fund created by the Council in accordance with the provisions of the section of this Act of which the marginal note is "Reserve funds";
- (e) All other expenses (if any) of the undertaking properly chargeable to revenue :
- A.D. 1926.
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Provided that in the case of the gas undertaking and the water undertaking respectively whenever the total receipts from revenue in respect thereof shall exceed the total of the payments and expenses on account of revenue in respect of the same undertaking as shown by the accounts to be kept in pursuance of this section (including any payments to a reserve fund) an amount equivalent to the amount of such excess shall whenever and so soon as there shall be an amount sufficient for the purpose be applied to the reduction of the charges for the supply of gas and water respectively by the Council :

Provided also that in the case of the electricity undertaking if the total receipts from revenue in respect thereof in any year shall exceed the total of the payments and expenses on account of revenue in respect thereof in that year as shown by the accounts to be kept in pursuance of this section (including any payments to a reserve fund) by an amount exceeding five pounds per centum per annum upon the aggregate capital expenditure of that undertaking the Council shall make such reductions or adjustments in the charge for the supply of electrical energy as in their judgment will reduce the excess of the said receipts over the said payments to an amount not exceeding the amount of the said five per centum.

(2) The Council shall show in their accounts relating to any undertaking or purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Council keep separate accounts for separate purposes they shall so far as may be reasonably practicable apportion between those accounts or carry to either of them any receipts credits payments and liabilities which from time to time ought

A.D. 1926. to be so apportioned or carried in order to show the financial position of each undertaking to which the accounts relate.

Accounts to be furnished to Minister of Transport.

22. The Council shall in every year within three months after the close of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of their tramway undertaking.

Repeal of certain provisions relating to accounts and revenues.

23. As from the thirty-first day of March one thousand nine hundred and twenty-seven the following enactments are hereby repealed (namely):—

The Act of 1896—

Section 64 District council to keep separate accounts of gas and water undertakings;

Section 65 Application of gas revenue;

Section 66 Application of water revenue.

The Act of 1899—

Section 42 Application of water revenue;

Section 43 As to deficiency in receipts.

The Act of 1902—

Section 102 Application of tramway revenue;

Section 103 Application of water revenue;

Section 104 As to deficiencies in receipts.

The Act of 1905—

Section 77 As to deficiencies in receipts.

The Order of 1911—

Section 2 Incorporation of Electric Lighting (Clauses) Act 1899 so far as the same incorporates and applies to the electricity undertaking of the Council section 7 (Application of money received by local authority as undertakers) of the Schedule to that Act.

Investment of and payments into sinking fund.

24. When under the provisions of this Act or the former Acts or of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before

or after the passing of this Act the Council are empowered or required to form a sinking fund or loans fund the following provisions shall have effect with respect thereto (that is to say) :—

A.D. 1926.

- (1) The Council may (in addition to any other powers for the time being vested in them) invest in statutory securities the yearly or other instalments paid to such fund and in the case of an accumulating sinking fund or loans fund the interest required to be accumulated in such fund :
- (2) In the case of an accumulating sinking fund or loans fund such annual sums as are equivalent to interest on the amount from time to time in that fund at the rate per centum per annum on which the payments of the yearly or other instalments to that fund are based shall be paid to that fund and provided out of the district fund and general district rate and all interest on the investments of the sinking fund or loans fund shall be carried by the Council to the credit of and shall form part of the district fund.

25.—(1) The clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Council under any statutory borrowing power.

Return to
Minister of
Health with
respect to
repayment
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer and shall be transmitted within one month after the making of the request and in the event of the clerk failing to make such return or the treasurer failing to make such declaration the officer so in default shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

A.D. 1926.
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(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Council shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) The provisions of this section shall extend and apply to any annual returns required to be made to the Minister with regard to the repayment of debt by any provisions of the local Acts or Provisional Orders now in force in the district notwithstanding anything contrary to or inconsistent therewith in any such Act or Order.

PART VI.

MISCELLANEOUS.

Byelaws as
to stables
&c.

26. The Council may make byelaws for securing the proper ventilation and lighting of and for the prevention of insanitary conditions in or about or arising out of any existing stable not being used as such at the time of the passing of this Act or in or about or arising out of or with regard to the situation in reference to other buildings of any stable erected after the passing of this Act.

Application
of provi-
sions of Act
of 1905.

27. The provisions of the following sections of the Act of 1905 shall apply to the purposes of this Act and of any byelaws made thereunder :—

Section 80 Authentication and service of notices
&c. ;

Section 81 Recovery of penalties ;

Section 83	Saving for indictments;	A.D. 1926.
Section 84	As to byelaws;	
Section 85	Informations &c. by whom to be laid;	
Section 87	As to appeal;	
Section 89	Penalties to be paid over to treasurer;	
Section 90	Judges &c. not disqualified.	

28. All the costs charges and expenses preliminary Costs of Act.
to and of and incidental to the preparing applying for
obtaining and passing of this Act as taxed by the taxing
officer of the House of Lords or of the House of Commons
shall be paid by the Council out of the district fund and
general district rate or out of moneys to be borrowed
under this Act for that purpose.

The SCHEDULES referred to in the
foregoing Act.

THE FIRST SCHEDULE.

ACTS AND ORDERS RELATING TO THE DISTRICT.

Session and Chapter.	Description or Short Title.
31 & 32 Vict. c. lvi. -	- The Ystrad Gas and Water Act 1868.
35 & 36 Vict. c. lxi.	- The Ystrad Gas and Water Order 1872 scheduled to and confirmed by the Gas and Water Orders Confirmation Act 1872.
37 & 38 Vict. c. cxliv.	- The Ystrad Gas and Water Com- pany's Act 1874.
42 & 43 Vict. c. cli.	- The Ystrad Gas and Water Order 1879 scheduled to and confirmed by the Gas and Water Orders Confirmation Act 1879.
46 & 47 Vict. c. xlvi.	- The Ystrad Gas and Water Order 1883 scheduled to and confirmed by the Gas and Water Orders Confirmation Act 1883.
53 & 54 Vict. c. clx.	- The Ystrad Gas and Water Works Act 1890.

[Ch. xcvi.] *Rhondda Urban* [16 & 17 GEO. 5.]
District Council Act, 1926.

A.D. 1926.	Session and Chapter.	Description or Short Title.
	59 & 60 Vict. c. lxxi.	- The Ystradyfodwg Urban District Council (Gas and Water) Act 1896.
	62 & 63 Vict. c. lxii.	- The Rhondda Urban District Council Act 1899.
	2 Edw. VII. c. clxii.	- The Rhondda Urban District Council (Tramways &c.) Act 1902.
	5 Edw. VII. c. clviii.	- The Rhondda Urban District Council Act 1905.
	10 Edw. VII. and 1 Geo. V. c. cxxi.	The Rhondda Urban District Council (Tramways Extensions &c.) Act 1910.
	1 & 2 Geo. V. c. ciii.	- The Rhondda Urban District Council Act 1911.
	1 & 2 Geo. V. c. clxi.	- The Rhondda Electric Lighting Order 1911 scheduled to and confirmed by the Electric Lighting Orders Confirmation (No. 2) Act 1911.
	5 & 6 Geo. V. c. lxxi.	- The Rhondda Urban District Council (Tramways Extensions &c.) Act 1915.
	10 & 11 Geo. V. c. lxix.	- The Rhondda Urban District Council Act 1920.
	S. R. and O. 1922 No. 1305.	The Rhondda Gas (Charges) Order 1922.

THE SECOND SCHEDULE.

FORM OF MORTGAGE.

RHONDDA URBAN DISTRICT.

By virtue of the Rhondda Urban District Council Act 1926 and of other their powers in that behalf them enabling the Rhondda Urban District Council (hereinafter referred to as "the Council") in consideration of the sum of

pounds (hereinafter referred to as "the principal sum")

paid to the treasurer of the Council by

of (hereinafter referred to as "the mortgagee")

do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Council (which expression includes the revenues of the Council from time to time arising from any land undertaking or other property for the time being of the Council and the rates or contributions leviable by or on the order or precept of the Council) as the principal sum

doth or shall bear to the whole sum which is or shall be charged A.D. 1926.
on the said revenues To hold unto the mortgagee [his] executors
administrators and assigns from the day of the date of these
presents until the principal sum shall be fully paid and
satisfied with interest for the same (subject as hereinafter
provided) at the rate of per centum per annum from
the day of one thousand nine
hundred and until payment of the principal
sum such interest to be paid half-yearly on the
day of and the day of
in each year And it is hereby agreed that the principal sum
shall be repaid at the Council offices (subject as hereinafter
provided) on the day of
one thousand nine hundred and or (if not
repaid on that date) at any time thereafter on the expiration of
three calendar months' notice in writing by the Council to the
mortgagee or by the mortgagee to the Council [by]:

Provided always and it is hereby agreed and declared that
the before-mentioned time for repayment may be extended to
such subsequent day or days and upon any such extension
the before-mentioned rate of interest may be altered to such
other rate or rates of interest as shall from time to time be
agreed upon between the Council and the mortgagee and
mentioned in an endorsement to be made hereon under the
hand of the chairman and clerk of the Council for the time
being respectively and that upon any such endorsement being
made whether relating to extension of time only or to extension
of time with alteration of rate of interest the provisions thereof
shall be incorporated herewith and shall operate and take effect
as though they had been originally inserted herein.

In witness whereof the Council have caused their common
seal to be hereunto affixed this day of
one thousand nine hundred and .

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named consenting the within-
mentioned time for repayment of the within-mentioned principal
sum of is hereby
extended to the day of
one thousand nine hundred and [and the interest
to be paid thereon on and from the day of
 one thousand nine hundred and
is hereby declared to be at the rate of per centum per
annum].

Dated this day of one
thousand nine hundred and .

[Ch. xcvi.]

Rhondda Urban
District Council Act, 1926.

[16 & 17 GEO. 5.]

A.D. 1926.

FORM OF TRANSFER OF MORTGAGE.

I the within named _____ of
_____ in consideration of
the sum of _____ pounds paid
to me by _____ of
(hereinafter referred to as "the transferee") do hereby transfer
to the transferee [his] executors administrators and assigns [the
within-written security] [the mortgage number _____ of
the revenues of the Rhondda Urban District Council bearing
date the _____ day of _____] and all
my right and interest under the same subject to the several
conditions on which I hold the same at the time of the execution
hereof and I the transferee for myself my executors administrators
and assigns do hereby agree to take the said mortgage security
subject to the same conditions.

Dated this _____ day of _____
one thousand nine hundred and _____

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FOR

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